

VIETNAM ACADEMY OF SOCIAL SCIENCES
GRADUATE ACADEMY OF SOCIAL SCIENCES

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**PROTECTION OF INTELLECTUAL PROPERTY RIGHTS
FOR TRADEMARKS UNDER THE CURRENT LAW OF
VIETNAM**

Major: Economic Law

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ABSTRACT OF A DOCTORAL DISSERTATION IN LAW

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INTRODUCTION

1. Importance of the Research Topic

Intellectual Property rights for trademarks, as a constituent part of Intellectual Property rights, have been and are demonstrating an important role in the socio-economic development of each nation, as well as contributing to the process of international economic integration of that nation. According to the development trend of the times, intellectual assets, which are the subject of Intellectual Property rights for trademarks, are increasingly accounting for a higher proportion in the economy. The good protection and enforcement of Intellectual Property rights for trademarks create a safe legal environment, encourage creative activities, and promote economic development.

The strong development of science and technology and e-commerce has helped intellectual property rights holders for trademarks bring goods and services bearing their trademarks to consumers easily, quickly build a reputation, and simultaneously maximize their legitimate rights and benefits. However, the very rapid and strong development of digital technology, e-commerce, online business, etc., has given rise to numerous complex issues that create difficulties for rights holders as well as state management agencies in controlling and handling infringing acts.

Over the past years, legal regulations on the protection of intellectual property rights for trademarks in Vietnam, while having achieved significant results such as creating an important legal basis to promote creativity and protect rights holders, have only met the basic requirements for general international economic integration and international economic integration in the field of intellectual property in particular. In practice, it shows that legal regulations protecting intellectual property rights for trademarks are not comprehensive enough or still contain some unclear and specific content, making it difficult for rights holders to request protection of their legitimate interests, and also posing challenges for handling infringing acts.

For the aforementioned reasons, the research, evaluation, and improvement of regulations and practices for the protection of IP rights for trademarks in Vietnam play an important role in promoting innovation, developing intellectual property in general and trademarks in particular, as well as fulfilling the requirements in Vietnam's commitments during the signing of FTAs and international integration. Therefore, the Research Fellow has chosen the topic *“Protection of Intellectual Property Rights for Trademarks under Current Vietnamese Law”* as their doctoral dissertation. The research content of the dissertation is expected to contribute to supplementing and clarifying the theoretical, legal, and practical bases for the protection of intellectual property rights for trademarks in the current new context.

2. Research Objectives and Tasks of the Dissertation

2.1. Research Objectives

The dissertation studies the theoretical issues, the current state of the law on the protection of IP rights for trademarks, and the practical operation of protecting IP rights for trademarks through civil measures and other measures, thereby proposing orientations and solutions to help improve the law and enhance the effectiveness of protecting intellectual property rights for trademarks in Vietnam.

2.2. Research Tasks

To achieve the above objective, the Dissertation needs to carry out the following tasks:

Firstly, to provide an overview of research works related to the dissertation topic and assess the research gap;

Secondly, to study the theoretical basis for the protection of intellectual property rights for trademarks;

Thirdly, to analyze the current state of the law and the practice of applying the law on the protection of intellectual property rights for trademarks;

Fourthly, to identify orientations and propose solutions to improve the law and enhance the effectiveness of protecting intellectual property rights for trademarks in Vietnam today.

3. Research subject and scope of the dissertation

3.1. Research subject

The research object of the Dissertation is the legal regulations and the practice of applying the law in the protection of intellectual property rights for trademarks in Vietnam today.

3.2. Research scope

Regarding the content: The protection of IP rights for trademarks is a very broad category encompassing many different measures. Within the scope of this research, from the perspective of a doctoral dissertation in Economic Law, the Dissertation focuses primarily on civil measures because they are consistent with the private nature of trademark rights. In addition, administrative measures are studied to illustrate why they are currently a commonly applied measure. Criminal measures in the protection of IP rights for trademarks are only mentioned in the theoretical research to ensure a complete system of rights protection and are not the main research content of the Dissertation.

Regarding the geographical scope: The Dissertation focuses on studying Vietnamese legal regulations. The study of international law and the laws of some other countries aims to compare and contrast in order to learn, draw lessons, and propose improvements to the legal framework for the protection of IP rights for trademarks in Vietnam.

Regarding the temporal scope: The Dissertation studies the formation and development process of legal regulations on the protection of IP rights for trademarks, focusing on in-depth research of the period from 2017 to 2023, as this is the period with many changes in legal regulations when Vietnam acceded to international treaties and amended the Intellectual Property Law.

4. Research Methodology and Methods of the Dissertation

4.1. Dissertation methodology

The dissertation is conducted based on the fundamental principles of Marxism-Leninism, Ho Chi Minh's ideology on dialectical materialism and historical materialism. The dissertation is also conducted based on the current viewpoints of the Party and the State on intellectual property rights for trademarks and the protection of intellectual property rights for trademarks.

4.2. Research methods of the Dissertation

The dissertation is conducted based on the fundamental principles of Marxism-Leninism, Ho Chi Minh's ideology on dialectical materialism and historical materialism. The dissertation is also conducted based on the current viewpoints of the Party and the State on intellectual property rights for trademarks and the protection of intellectual property rights for trademarks.

5. Scientific Contributions of the Dissertation

By synthesizing and systematizing previous scientific research works related to the dissertation topic, the dissertation identifies the issues that have been researched and the depth of the research on those issues, thereby pointing out the issues that need further research, the appropriate research content, and inheriting valuable research results.

6. Theoretical and Practical Importance of the Dissertation

6.1. Theoretical significance

The dissertation has made certain scientific contributions by proposing specific and feasible solutions that are valuable in contributing to the improvement of Vietnamese law on the protection of intellectual property rights for trademarks, as well as supporting solutions aimed at enhancing the effectiveness of IP rights protection for trademarks in Vietnam.

6.2. *Practical importance*

The dissertation has made certain scientific contributions by proposing specific and feasible solutions that are valuable in contributing to the improvement of Vietnamese law on the protection of intellectual property rights for trademarks, as well as supporting solutions aimed at enhancing the effectiveness of IP rights protection for trademarks in Vietnam.

7. *Structure of the dissertation*

Apart from the introduction, conclusion, list of references, and appendices, the Dissertation is structured into 4 chapters.

Chapters 1

OVERVIEW OF THE RESEARCH SITUATION RELATED TO THE DISSERTATION TOPIC AND THE ISSUES RAISED

1.1. Overview of the Research Situation Related to the Dissertation Topic

The dissertation has analyzed the research situation both domestically and internationally according to the following groups of issues:

- Group of research works on theoretical issues of IP rights and the protection of IP rights for trademarks.
- Group of research works on the current state of the law and the practice of protecting intellectual property rights for trademarks through civil and administrative measures.
- Group of research works on orientations and solutions to improve the law and enhance the effectiveness of protecting intellectual property rights for trademarks through civil and administrative measures.

1.2. Overall assessment of the research situation and issues for further research

Based on the assimilation of previous research results, the dissertation identifies research gaps and proposes some focused contents of the dissertation:

Firstly, in terms of theory, to continue researching and clarifying the contents regarding the protection of IP rights for trademarks.

Secondly, regarding the current state of the law, the Dissertation analyzes and evaluates the principles and contents of Vietnamese law based on the requirements of practical adjustment and compatibility with some international treaties that Vietnam has recently acceded to, such as CPTPP and EVFTA... The principles and contents regarding the current state of the law on the protection of IP rights for trademarks through civil and administrative

measures clarified in the Dissertation will be an important orientation and directly impact the protection of IP rights for trademarks in Vietnam.

Thirdly, regarding the practice of law enforcement, through statistical data on the practical operation of protecting IP rights for trademarks, the Research Fellow will collect, analyze, and evaluate to clarify the effectiveness of protecting IP rights for trademarks and the practice of applying the law.

1.3. Theoretical basis of the research and Research questions

1.3.1. Theoretical basis of the research

The dissertation applies the fundamental theories of IP rights protection in general, combined with specific theories on the protection of IP rights for trademarks, including:

- John Locke's Theory of Property (1632-1704)
- Theory of Public Goods and Balancing of Interests
- Theory of Competition

1.3.2. Research questions

From the general theoretical basis, to achieve the research objectives, the dissertation formulates the following research questions:

Firstly, Research on the Theoretical Aspect

Research Question: What are Intellectual Property Rights for Trademarks and the Protection of Intellectual Property Rights for Trademarks?

Research Hypothesis: Currently, there is no unified viewpoint on the concept of Intellectual Property Rights for Trademarks and the concept of the Protection of Intellectual Property Rights for Trademarks.

Research Question: What are the characteristics of the content, principles, and measures for the protection of Intellectual Property Rights for Trademarks?

Research Hypothesis: The characteristics that need clarification are the elements of content, principles, and measures for the protection of

Intellectual Property Rights for Trademarks, which have not been deeply analyzed in previous studies.

Secondly, Research on the Current State of the Law and the Practice of Law Enforcement

Research Question: What are the contents of the Vietnamese legal basis for the protection of Intellectual Property Rights for Trademarks, and does it meet practical needs as well as international integration requirements?

Research Hypothesis: Vietnamese law on the protection of Intellectual Property Rights for Trademarks has basically met practical needs and has incorporated global international commitments, but it is not truly suitable for the changing requirements in the new development situation.

Thirdly, Research on Orientations and Solutions

Research Question: What is the current orientation for improving the law on the protection of Intellectual Property Rights for Trademarks? What are the solutions to overcome the inadequacies, shortcomings, and limitations in the current legal regulations protecting Intellectual Property Rights for Trademarks, and what are the implementation solutions?

Research Hypothesis: The improvement of the law on the protection of Intellectual Property Rights for Trademarks is not truly consistent with the nature of Intellectual Property Rights for Trademarks. The proposed solutions for improving the law and enhancing the effectiveness of protecting Intellectual Property Rights for Trademarks are not entirely synchronized and effective.

Conclusion of Chapter 1

Through the overall assessment of research works related to the dissertation topic, the Research Fellow has recognized the valuable aspects to inherit from the aforementioned research works and identified the issues that need further research in their dissertation.

Chapter 2

THEORETICAL ISSUES ON THE PROTECTION OF INTELLECTUAL PROPERTY RIGHTS FOR TRADEMARKS AND THE LAW ON THE PROTECTION OF INTELLECTUAL PROPERTY RIGHTS FOR TRADEMARKS

2.1. The Theoretical of Intellectual Property Rights for Trademarks

2.1.1. Definition of Intellectual Property Rights for Trademarks

Intellectual Property (IP) rights in general and IP rights for trademarks in particular only arise when there are official legal regulations recognizing or protecting them. The essence of IP rights is a special type of property right, established based on relevant legal regulations, with the content of the right including the right to use, the right to dispose of, and the right to prevent others from unauthorized use. The scope of the concept of IP rights for trademarks under the law of each country as well as in international treaties varies due to being influenced by views on the signs constituting a trademark.

The TRIPS Agreement of 1995 was established with significant advancements, particularly in the field of intellectual property. The Agreement introduced the concept of trademarks in paragraph 1 of Article 15: *“Any sign, or any combination of signs, capable of distinguishing the goods or services of one undertaking from those of other undertakings, shall be capable of constituting a trademark. Such signs, in particular words including personal names, letters, numerals, figurative elements and combinations of colours as well as any combination of such signs, shall be eligible for registration as trademarks. Where signs are not inherently capable of distinguishing the relevant goods or services, eligibility for registration may be made to depend on distinctiveness acquired through*

use. Members may require, as a condition of registration, that signs must be visually perceptible”.

In Vietnam, adopting progressive global perspectives on the concept of trademarks and IP rights for trademarks, the Intellectual Property Law of 2005, in Clause 16 of Article 4, explains that “a trademark” is understood as *“signs used to distinguish goods and services of different organizations and individuals”*. More specifically, Article 72 of the amended and supplemented IP Law of 2022, when referring to the general conditions for a trademark to be protected, states that it is *“visible signs in the form of letters, words, drawings, images, three-dimensional shapes or a combination of these elements, expressed in one or more colors, or sound signs represented in graphic form”*.

Through analyzing the principles for establishing IP rights for trademarks and analyzing the concept of trademarks to identify the signs that constitute the content of IP rights for trademarks, within the scope of this Dissertation, the concept of IP rights for trademarks can be understood in the most general sense as *the rights of entities stipulated or recognized by law through registration or use for signs used to distinguish goods and services from those of other entities, including visible signs in the form of letters, words, drawings, images, three-dimensional shapes or a combination of these elements, expressed in one or more colors, or sound signs represented in graphic form*.

2.1.2. Characteristics of Intellectual Property Rights for Trademarks

Trademarks, as an object within the scope of IP, imply that IP rights for trademarks are a constituent part of the IP rights system. Therefore, IP rights for trademarks possess both the common characteristics

inherent to IP rights and unique attributes that create differences compared to other types of property rights.

2.2. Theories on the Protection of Intellectual Property Rights for Trademarks

2.2.1. The Concept of Protecting Intellectual Property Rights for Trademarks

Synthesizing the analyses presented, the term 'protection of intellectual property rights for trademarks' is systematically understood as follows: Protecting intellectual property rights for trademarks is the activity of competent state agencies, trademark owners, or other related entities using legally prescribed measures to prevent and handle acts of infringing upon legitimate intellectual property rights for trademarks, preserving the ownership rights for this object.

The above approach to the protection of IP rights for trademarks has generalized the entire scope of activities involved in protecting IP rights for trademarks and is fully consistent with the current regulations of the Intellectual Property Law of Vietnam.

2.2.2. Characteristics of the Protection of Intellectual Property Rights for Trademarks

The protection of IP rights for trademarks possesses distinct legal characteristics, stemming from the intangible nature of the protected object. IP rights for trademarks are not merely property rights of an individual nature belonging to the owner but also carry the potential for easy infringement due to their non-physical and intangible nature. For this reason, countries have all built a system of legal protection measures to support rights holders while ensuring a healthy competitive environment in the market and protecting consumer interests. Unlike the protection of

ordinary tangible assets, the protection of IP rights for trademarks has characteristics similar to: subject matter, scope of rights protection, protected object, measures for rights protection, purpose of protection, etc. Intellectual property rights for trademarks, like property rights in general, are absolute civil rights of the owner that others have an obligation to respect and not infringe upon. The State, with its leading role, establishes a legal system with certain support measures for rights protection to prevent infringing acts, protect the rights of trademark owners, and protect the market. Each measure for the protection of IP rights for trademarks has its own characteristics, so depending on different aspects and perspectives, each specific protection measure will leverage its own advantages.

2.2.3. Measures for the Protection of Intellectual Property Rights for Trademarks

2.2.3.1. Civil Measures for the Protection of Intellectual Property Rights for Trademarks

2.2.3.2. Administrative Measures for the Protection of Intellectual Property Rights for Trademarks

2.2.3.3. Criminal Measures for the Protection of Intellectual Property Rights for Trademarks

2.3. Law on the Protection of Intellectual Property Rights for Trademarks

The legal system for the protection of IP rights for trademarks is built and developed based on theories of property rights protection for rights holders, while also emphasizing the balancing of interests between rights holders and the general needs and interests of society. The main regulatory objective of the law in the field of IP rights protection for trademarks is to terminate existing infringing acts, prevent potential future

infringing acts through effective warning and prevention mechanisms, as well as to establish a solid legal basis for fair compensation for rights holders whose trademark IP rights have been infringed. The law on the protection of IP rights for trademarks is a complex system, comprising legal regulations from various legal sectors, such as civil law, administrative law, criminal law, customs law, civil procedure law, administrative procedure law, criminal procedure law, etc. These legal norms can be classified into two main groups: substantive law, regulating rights and obligations, and procedural law, regulating the order and procedures for rights protection.

2.4. Protection of Intellectual Property Rights for Trademarks under International Treaties and the Laws of Some Countries

2.4.1. Protection of Intellectual Property Rights for Trademarks under International Treaties to which Vietnam is a Member

In the context of rapid advancements in science and technology and increasingly expanding global economic trade, the need for deep international integration has driven countries to establish common standards and rules of conduct in the field of IP. The inevitable consequence is that a series of international treaties related to IP and the objects of IP rights have been signed and are constantly being improved. These international treaties serve as a solid legal foundation for the protection and enforcement of IP rights on a global scale. The dissertation has reviewed the content on the protection of IP rights for trademarks mentioned in several international treaties such as the Paris Convention for the Protection of Industrial Property of 1883, the TRIPS Agreement of 1994, the CPTPP Agreement of 2018, the Vietnam-EU Free Trade Agreement of 2019, etc., and has also analyzed the legal regulations on the protection of IP rights for trademarks

of some countries such as Japan, the United States, and China. From this, some referential experiences and proposals for Vietnam can be drawn.

2.4.2. Protection of Intellectual Property Rights for Trademarks under the Laws of Some Countries

Through the study of the laws on the protection of IP rights for trademarks of several countries around the world, a clear common trend can be observed: countries have been and are continuing to build a legal system that protects rights strictly and rigorously while constantly improving the organizational structure of national IP rights protection agencies. From this, some referential experiences can be drawn for Vietnam.

Conclusion of Chapter 2

Chapter 2 has focused on clarifying the fundamental theoretical issues regarding the protection of intellectual property rights for trademarks while deeply analyzing the legal system governing this field at both the international and national levels. Through the research process, the dissertation has systematized basic concepts, clarified the nature and particularly important role of protecting IP rights for trademarks in commercial activities and socio-economic life. The theoretical issues and legal analyses presented in Chapter 2 serve as a solid foundation for researching practical issues and proposing solutions to improve the law on the protection of intellectual property rights for trademarks in Vietnam in the subsequent chapters of the dissertation.

Chapter 3

THE CURRENT STATE OF THE LAW AND PRACTICE OF PROTECTING INTELLECTUAL PROPERTY RIGHTS FOR TRADEMARKS IN VIETNAM

3.1. The Current State of Legal Regulations on the Protection of Intellectual Property Rights for Trademarks in Vietnam

The research will delve into the current legal regulations and the practical operation of protecting IP rights for trademarks to identify the advantages and limitations of each measure, determine the causes of limitations, and propose solutions to improve the law on the protection of IP rights for trademarks and enhance the effectiveness of each protective measure. Before examining each protective measure in detail, the Dissertation deems it necessary to review the current legal regulations on IP rights for trademarks – the direct object that these protection regulations aim to address.

3.1.1. The Current State of the Law on Intellectual Property Rights for Trademarks

3.1.1.1. On the Subject Matter Protected by Intellectual Property Rights for Trademarks

The subject matter of IP rights for trademarks is precisely the trademark that has been recorded for protection by the State through a Trademark Registration Certificate. The IP Law does not officially provide a definition of a trademark, but it does provide an explanation of its function and purpose: *"signs used to distinguish goods and services of different organizations and individuals"* in Clause 16, Article 4. To specify the content of a trademark, Clause 1, Article 72 of the IP Law on the general conditions for a trademark to be protected states that it is *"visible signs in the form of letters, words, drawings, images, three-dimensional*

shapes or a combination of these elements, expressed in one or more colors, or sound signs represented in graphic form."

3.1.1.2. On the Owners of Intellectual Property Rights for Trademarks

The owner of IP rights for a trademark is the owner of the trademark recognized and recorded by the National Office of Intellectual Property (NOIP) on the protection title (also known as the Trademark Registration Certificate). Article 121 of the IP Law stipulates "Owners of industrial property objects," in which it clearly states, "The owner of a trademark is an organization or individual that has been granted a trademark protection title by a competent authority or has a trademark registered internationally and recognized by a competent authority or has a well-known trademark." Organizations and individuals that are owners of IP rights for trademarks under Article 121 of the IP Law can be Vietnamese organizations or individuals or foreign organizations or individuals that have registered and been protected for their trademarks in Vietnam, whether through direct filing in Vietnam or through filing via the international trademark registration system designating Vietnam. The owner of IP rights for a trademark can be a single organization or individual or co-owners in cases where the trademark is registered and granted a protection title to more than one owner.

3.1.1.3. On the Content and Limitations of the Protection of Intellectual Property Rights for Trademarks

- Content of IP Rights for Trademarks
- Limitations of IP Rights for Trademarks

3.1.1.4. On Acts of Infringement of Intellectual Property Rights for Trademarks

3.1.1.5. On Certain Cases Not Considered Infringement of Intellectual Property Rights for Trademarks

3.1.2. The Current State of Legal Regulations on the Protection of Intellectual Property Rights for Trademarks by Civil Measures in Vietnam

3.1.2.1. Jurisdiction to Apply Civil Measures in the Protection of Intellectual Property Rights for Trademarks

According to the provisions of Article 198 of the IP Law, one of the self-protection rights that the owner of IP rights for a trademark can choose is to initiate a lawsuit at the Court to request protection of their rights when infringed upon. Following this, Clause 2, Article 200 of the IP Law stipulates that the authority to apply civil measures in the protection of IP rights for trademarks lies with the Court. The Court is the competent authority to apply civil measures; furthermore, in necessary cases, the Court can also apply supplementary provisional emergency measures according to the law. When implementing civil measures in the protection of IP rights for trademarks, the Court must comply with the procedural regulations stipulated in the Civil Procedure Code of 2015.

The jurisdiction of the Court under current law is determined according to the following criteria: (i) jurisdiction by court level, (ii) jurisdiction by type of case, (iii) territorial jurisdiction.

3.1.2.2. Conditions for Initiating a Lawsuit in the Protection of Intellectual Property Rights for Trademarks

Connecting the regulations recording the rights of trademark owners as well as the regulations on the protection of these rights under current law, it can be seen that to initiate a lawsuit at the Court, the rights holder – the plaintiff – must satisfy certain conditions.

3.1.2.3. On Evidence, Burden of Proof, and Trademark Assessment

3.1.2.4. On the Application of Provisional Emergency Measures

3.1.2.5. On Civil Remedies Applied in the Protection of IP Rights for Trademarks

3.1.3. The Current State of Legal Regulations on the Protection of Intellectual Property Rights for Trademarks by Administrative Measures in Vietnam

In the current context, administrative measures are the preferred choice for the majority of rights holders when requesting the handling of acts infringing upon IP rights for trademarks in Vietnam. While the certain advantages that administrative measures bring cannot be denied, it is necessary to honestly acknowledge that the effectiveness of handling trademark infringement through administrative channels has not truly fully guaranteed the rights of infringed parties and there are still many noteworthy inadequacies. These limitations and inadequacies will be analyzed and clarified through an in-depth study of the current state of protecting IP rights for trademarks by administrative measures in the detailed sections.

3.1.3.1. Jurisdiction to Apply Administrative Measures in the Protection of Intellectual Property Rights for Trademarks

Clause 3, Article 200 of the IP Law stipulates the jurisdiction to apply administrative measures in handling acts of infringing upon IP rights for trademarks. This content is detailed in Decree No. 99/2013/ND-CP detailing administrative penalties in the field of industrial property, as amended and supplemented by Decree No. 126/2021/ND-CP. Accordingly, the jurisdiction to apply administrative measures of each agency will depend on the management level and the level of applied penalties.

The law stipulates five agencies with the authority to handle infringements of IP rights for trademarks by administrative measures, including: Inspectorate agencies, Customs agencies, Market Surveillance agencies, Police agencies, and People's Committees at all levels. Where necessary, these agencies may apply measures to prevent and ensure administrative penalties in accordance with the law.

The specific content on the authority to impose administrative penalties for acts of infringing upon IP rights for trademarks of these agencies is as follows:

- (i) Inspectorate agencies
- (ii) Market Surveillance agencies

(iii) Customs agencies

- (iv) Police agencies
- (v) People's Committees

3.1.3.2. On the Conditions for Applying Administrative Measures in the Protection of Intellectual Property Rights for Trademarks

3.1.3.3. On the Administrative Sanctions Applied in the Protection of IP Rights for Trademarks

3.2. The Practice of Protecting Intellectual Property Rights for Trademarks in Vietnam

In the context of Vietnam's deep integration into the global economy, international integration standards, including those in the field of intellectual property, are increasingly being implemented and integrated into the socio-economic life of all localities and regions across the country. Particularly in the field of intellectual property, the protection of rights to trademarks has always received special attention from individuals and organizations, surpassing other types of rights.

3.2.1. The Practice of Applying the Law in Protecting Intellectual Property Rights for Trademarks by Civil Measures

In many countries around the world, the protection of intellectual property assets is mainly carried out through civil measures, with the judicial system playing a central role. Other administrative agencies often only undertake initial preventive measures to ensure timeliness in rights protection activities. The prevailing view in these countries is to prioritize and highly value the effectiveness of civil measures in protecting

intellectual property assets over administrative and criminal measures. This stems from the fact that civil measures are considered to better ensure public, transparent, and fair procedures, creating conditions for parties participating in civil proceedings to fully exercise their procedural rights and obligations in Court. At the same time, civil measures also ensure that procedural principles and procedures are fully and systematically implemented, clearly defining the functions and powers of the agencies and individuals conducting the proceedings, as well as the jurisdiction of each level of Court in resolving civil cases. However, the reality in Vietnam shows that the resolution of trademark intellectual property infringement cases in Court by civil measures has not yet yielded the expected results.

3.2.2. The Practice of Applying the Law to Protect IP Rights for Trademarks by Administrative Measures

Among the measures for protecting IP rights for trademarks, administrative measures are currently the most commonly applied to handle infringing acts. After about 20 years since the Intellectual Property Law of 2005 took effect, in general, the protection of IP rights for trademarks by administrative measures has recorded many changes; however, the difference in actual effectiveness has not been truly significant.

3.3. Assessment of Obstacles and Inadequacies in Legal Regulations and the Practice of Applying the Law on the Protection of Intellectual Property Rights for Trademarks in Vietnam

3.3.1. Obstacles and Inadequacies in Legal Regulations on the Protection of Intellectual Property Rights for Trademarks in Vietnam

3.3.2. Obstacles and Inadequacies in the Practice of Applying the Law on the Protection of Intellectual Property Rights for Trademarks in Vietnam

Conclusion of Chapter 3

From the analysis of the current state of the law on the protection of IP rights for trademarks and the practice of applying the law to protect IP rights for trademarks through the adjudication of civil cases as well as administrative handling of cases over the past time, it shows that administrative measures are currently widely applied but lack sufficient deterrence and an effective compensation mechanism. Civil measures, despite their advantage in terms of compensation capability, face many obstacles in terms of procedures, time, and proving damages. In addition, limitations in the resources of enforcement agencies, inconsistency in understanding and applying the law among different levels and sectors, along with the low awareness of the community and a portion of rights holders, have been significantly affecting the overall effectiveness of the protection of intellectual property rights for trademarks in Vietnam. This chapter also points out the main reasons leading to the aforementioned limitations and inadequacies. These analyses will serve as a solid foundation for proposing constructive solutions and recommendations in Chapter 4 of the Dissertation.

Chapter 4

ORIENTATIONS AND SOLUTIONS FOR IMPROVING THE LAW AND ENHANCING THE EFFECTIVENESS OF PROTECTING INTELLECTUAL PROPERTY RIGHTS FOR TRADEMARKS IN VIETNAM

4.1. Orientations for Improving the Law and Enhancing the Effectiveness of Protecting Intellectual Property Rights for Trademarks in Vietnam

Protecting IP rights for trademarks is an objective requirement of Vietnam's development and international economic integration process. Vietnam's Intellectual Property Strategy to 2030, approved by the Prime Minister on August 22, 2019, under Decision No. 1068/QĐ-TTg, clearly affirms the tasks and solutions for reviewing and improving intellectual property laws on the protection of intellectual property rights; ensuring that measures to protect intellectual property rights are consistent with the civil nature of intellectual property rights; researching and proposing sanctions to handle acts of intellectual property infringement that are sufficiently deterrent and focusing on combating counterfeit intellectual property goods. The key tasks emphasized in the Strategy show the importance of improving the law and enhancing the effectiveness of protecting IP rights for trademarks. To improve the law on the protection of IP rights for trademarks as well as enhance the effectiveness of protecting IP rights for trademarks in order to meet the country's development goals, the following basic orientations need to be thoroughly understood:

4.1.1. Institutionalizing the Party and State's guidelines and policies on the protection of intellectual property rights in general and intellectual property rights for trademarks in particular

4.1.2. Aligning with the trend of international integration and the socio-economic development of Vietnam

4.1.3. Ensuring the synchronicity and consistency of legal regulations

4.1.4. Ensuring accuracy and fairness in the protection of intellectual property rights for trademarks

4.1.5. Protecting the legitimate rights and interests of intellectual property rights holders for trademarks, balancing the interests of consumers and the interests of the whole society

4.1.6. Ensuring the effectiveness of activities to protect intellectual property rights for trademarks

4.2. Solutions for Improving the Law and Enhancing the Effectiveness of Protecting Intellectual Property Rights for Trademarks in Vietnam

4.2.1. Solutions for Improving the Law on Intellectual Property Rights and the Protection of Intellectual Property Rights for Trademarks

4.2.1.1. Solutions for improving specific legal regulations on intellectual property rights for trademarks

4.2.1.2. Solutions for improving legal regulations on the protection of intellectual property rights for trademarks by civil and administrative measures

4.2.2. Solutions for Enhancing the Effectiveness of Protecting Intellectual Property Rights for Trademarks

4.2.2.1. Strengthening the capacity of agencies protecting intellectual property rights for trademarks by civil and administrative measures

4.2.2.2. Research to establish specialized Intellectual Property Courts

4.2.2.3. Strengthening information activities on intellectual property, consolidating and enhancing the role of intellectual property associations,

raising awareness of intellectual property protection in general and trademarks in particular

4.2.2.4. Raising the awareness of rights holders to self-protect their rights and the awareness of consumers

Conclusion of Chapter 4

Chapter 4 of the Dissertation has systematically presented the orientations and solutions for improving the law and enhancing the effectiveness of protecting IP rights for trademarks in Vietnam, based on the theoretical and practical analyses clarified in the previous chapters. These orientations and solutions are developed based on the general goals of socio-economic development, international integration, and the practical requirements of IP rights protection work in Vietnam.

CONCLUSION

The dissertation *"Protection of Intellectual Property Rights for Trademarks under Current Vietnamese Law"* has achieved its research objectives, clarifying the theoretical and practical issues of protecting IP rights for trademarks in Vietnam. Based on an in-depth analysis of the current state of the law and its practical application, the dissertation has pointed out the achievements, limitations, and their causes, while also proposing synchronized orientations and solutions to improve the law and enhance the effectiveness of protecting IP rights for trademarks in the context of increasingly deep international integration.

LIST OF PUBLISHED WORKS RELATED TO THE DISSERTATION

1. Vu Thi Phuong Giang *"Protecting intellectual property rights for trademarks through administrative measures in Vietnam today"*, Journal of Social Sciences Human Resources, No. 02/2023.
2. Vu Thi Phuong Giang *"Protecting intellectual property rights for trademarks through civil measures"*, Communist Review Online, published on March 21, 2023.